

Court No. - 3

Case :- WRIT - C No. - 7327 of 2024

Petitioner :- Vishwanath

Respondent :- State Of U.P. Thru. Prin. Secy. Energy
Deptt. Lko. And 5 Others

Counsel for Petitioner :- Prashant Vikram
Singh, Akshaya Pratap Singh

Counsel for Respondent :- C.S.C., Manish Jauhari

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Brij Raj Singh, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri Manish Jauhari, learned counsel appearing for opposite parties no.2 to 4.

This petition has been filed with the following main prayers:-

" (I) Issue a suitable writ order or direction in the nature of Certiorari quashing the entire proceedings of Original Suit No. 1146 of 2023 (Shripal and Another Versus Vishwanath and Others) pending in the court of the Civil 28 Judge, (Senior Division), Court No. 15, Sultanpur.

(II) Issue a suitable writ order or direction in the nature of Mandamus commanding the opposite party/respondent Nos. 03 and 04 to layout the electric wires on the already erected electric poles and start supplying electricity to the Petitioner.

(III) Issue a suitable writ order or direction in the nature of Mandamus commanding the opposite party/respondent Nos. 1 to 4 to grant compensation to the Petitioner as per clause 7.7.2. and other clauses of the chapter 7 of the Electricity Supply Code, 2005 for not starting electric supply to him even after approval of his application for electricity connection."

Learned Standing Counsel has raised an objection regarding maintainability of the writ petition.

So far as prayer no.1 is concerned, learned counsel for the petitioner prays that he may be permitted to delete prayer no.1 from the relief clause.

On oral prayer, learned counsel for the petitioner is permitted to delete prayer no.1 from the relief clause during the course of the day.

So far as prayer nos. 2 and 3 are concerned, Sri Manish Jauhari, learned counsel for opposite party nos. 2 and 3 prays for and is granted four weeks time to file counter affidavit. Two weeks time thereafter is given to learned counsel for the petitioner to file rejoinder affidavit.

List this case on 15.10.2024.

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(Brij Raj Singh, J.) (Sangeeta Chandra,J.)

Order Date :- 28.8.2024

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